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Attorneys for Defendants, Adam Brady and Emma Brady

ELECTRONICALLY
F I L E D
Superior Court of California, County of San Francisco
01/28/2026
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

JEREMY BERENS and
PATRICIA SZAFRANSKI-BERENS,

Plaintiffs,

vs.

ADAM BRADY; EMMA BRADY; and
DOES 1 to 30,

Defendants.
_____/

Case No. CGC-24-611337

DECLARATION OF JOSEPH WOOD IN SUPPORT OF *EX PARTE* APPLICATION, PURSUANT TO STIPULATION, FOR CONTINUANCE OF TRIAL

Dept: 206
Date: January 29, 2026
Time: 11:00 a.m.

Joseph Wood declares:

1. I am the attorney for Adam Brady and Emma Brady ["the Bradys"], defendants in the above-named action. The facts set forth below are within my personal knowledge and if called as a witness I would testify competently to those facts.

2. Service of the complaint on the Bradys in this action was completed on or about May 23, 2024.

3. All parties have stipulated to the continuance currently being sought.

4. One prior continuance has been granted in this matter, moving the trial from 9:30 a.m. on September 6, 2025, to 9:30 a.m. on April 6, 2026. It had been requested jointly by the parties because the Stillwater Property and Casualty Insurance Company ["Stillwater"], one of the Brady's insurers, had not yet issued a determination as to coverage, and the absence of such a determination had materially impaired the parties' ability to move this case forward. After much delay, on or about September 29, 2025, Stillwater issued a negative determination, denying coverage, a defense, and indemnification to the Bradys.

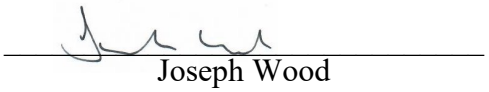
5. Since the Court granted the prior continuance, the Bradys' trial counsel, Joseph Wood, has experienced, and continues to experience, flareups of a debilitating autoimmune condition. These flareups are episodic and unpredictable, and when they occur they materially impair Mr. Wood's ability to perform sustained litigation tasks, including discovery and trial preparation. For that reason, Mr. Wood anticipates that, in order to complete those tasks, he will need approximately one hundred thirty days beyond the period of time the parties had previously believed would be sufficient.

6. In addition, the parties have met and conferred and agree, in light of the insurance situation, that this case is an excellent candidate for resolution through private mediation. The mediation process, with suspension of discovery while that process is being arranged and carried through, will make it problematic for the parties to be ready for trial on the presently scheduled date should the case not resolve. Again, an additional one hundred thirty days should obviate the problem.

7. This request is made in good faith and not for purposes of delay.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: January 26, 2026



Joseph Wood

PROOF OF SERVICE

Alexander Vaisman declares:

1. I am over twenty-one years of age and am not a party to the above-named action. My business address is 1 Sansome Street, Suite 1400, San Francisco, CA 94104.

2. On January 27, 2026, in San Francisco, California, I served the attached

DECLARATION OF JOSEPH WOOD IN SUPPORT OF *EX PARTE* APPLICATION, PURSUANT TO STIPULATION, FOR CONTINUANCE OF TRIAL

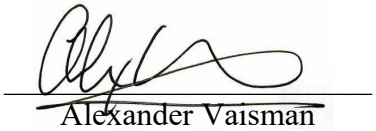
on the parties that have appeared in this action.

3. Service was made by email transmission as follows:

Tom H. Elke
Alexander Merchant
Elke & Merchant, LLP
Email address: alex@elkemerchant.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: January 27, 2026



Alexander Vaisman